

Rajasthan Electricity Regulatory Commission (Constitution of fund and the manner of application of the fund) Rules, 2006

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State of Rajasthan - Act

Rajasthan Electricity Regulatory Commission (Constitution of fund and the manner of application of the fund) Rules, 2006

RAJASTHAN

India

Rajasthan Electricity Regulatory Commission (Constitution of fund and the manner of application of the fund) Rules, 2006

Published on 5 August 2006

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Rajasthan Electricity Regulatory Commission (Constitution of fund and the manner of application of the fund) Rules, 2006

Published vide Notification No. G.S.R. 35, dated 5.8.2006

Last Updated 24th May, 2019

G.S.R. 35. - In exercise of the powers conferred by clause (g) of sub-section (2) of section 180 read with sub-section (1) and (3) of section 103 of the Electricity Act, 2003 (36 of 2003), the Governor is pleased to make the following rules:

1.

Short title and commencement.

(1)

These rules may be called the Rajasthan Electricity Regulatory Commission (Constitution of fund and the manner of application of the fund) Rules, 2006.

(2)

These regulations will come into effect from the date of their publication in the Official Gazette of the Government of Rajasthan.

2.

Definitions.

(1)

In these rules unless the context otherwise requires:

(a)

"Accounting period" means the period for which the Accounts are prepared by the Commission and will be concurrent with the Financial year.

(b)

"Act" means the Electricity Act, 2003 (Act 36 of 2003).

(c)

"Chairperson" means the Chairperson of Rajasthan Electricity Regulatory Commission.

(d)

"Drawing and Disbursing Officer (DDO)" means the officer authorized by the Commission to draw money from the fund as referred to in Rule 3(2) and make payments on behalf of the Commission.

(e)

"Financial Year" means a period not exceeding twelve calendar months commencing on 1st April of a year and concluding on 31 March of the following year.

(f)

"Form" means Form appended to these rules.

(g)

"Fund" means the fund constituted under section 103 of the Electricity Act, 2003 for the Rajasthan Electricity Regulatory Commission to be maintained as per Rule 3(2).

(h)

"Member" means member of the Rajasthan Electricity Regulatory Commission.

(i)

"State Government" means the Government of Rajasthan.

(j)

"State Commission" or "Commission" means the Rajasthan Electricity Regulatory Commission constituted under section 82 of the Act.

(k)

"Secretary" means the Secretary of the Commission.

(2)

Words and expressions used and not defined in these rules, but defined in the Act will have the same meaning as assigned to them in the Act.

3.

Constitution of the Fund.

(1)

The State Government hereby constitutes a fund in the name of Rajasthan Electricity Regulatory Commission Fund.

(2)

The fund will comprise of:

(i)

Any grants and loans made to the Commission by the State Government under section 102 of the Act.

(ii)

All fees and penalties received by the State Commission under the Act.

(iii)

All other sums as may be received by the State Commission from other sources.

4.

Application of the Fund.

(1)

The fund will be used for making regular payment of pay and allowances and pension and other remuneration to Chairperson, Members, Secretary, Officers and employees of the State Commission.

(2)

The Commission will also utilize the fund in meeting all expenses, required in connection with discharge of its functions under section 86 as also for meeting objects and the purposes authorized under the Act, in accordance with the Budget for the financial year submitted by the Commission under Rule 5. The details of expenditure heads are given in schedule-I.

(3)

After the financial year, the Commission will submit the duly Audited Annual Accounts to the Government.

(4)

The Commission will prepare its annual budget in Form I and Form II for the next financial year showing the estimated receipts and expenditure of the Commission and will forward the same to the Department of Energy of the State Government before 30th September, of the current financial year.

5.

Release of Grants and Loans.

(1)

Grants and loans under section 102 of the Act will be released by the State Government to the State Commission in four equated quarterly instalments. Sanction orders will be issued by the Energy Department authorizing the Treasury Officer, Rajasthan Secretariat to draw fund by raising grant in aid bill and disburse the same by an Accounts payee cheque.

(2)

The State Commission will maintain proper Accounts and other records of the grants and loans as prescribed in the Rajasthan Electricity Regulatory Commission (annual Statement of Accounts) Rules.

(3)

At the close of the financial year the State Commission will furnish a utilization certificate showing the opening balance, amount cS grants and loans utilized and the balance remaining unutilized.

6.

Operation of the fund.

(1)

The State Commission will meet the expenses required in connection with the discharge of its functions under section 86 as also for meeting the objects and the purposes authorized by the Act.

(2)

Opening of Bank Account:

(a)

The State Commission after taking a decision of the full Commission will open a bank account/Accounts in the State Bank of India and/or in one or more Nationalized Bank. For the purpose of ensuring gainful investment of general provident fund, gratuity fund, pension fund and pension medical concession fund. The Commission may also open Demat Account in scheduled banks.

(b)

The State Commission will make available the specimen signatures of two of its officers to be the authorized signatories to the nominated bank/banks for their information and record.

(c)

The nominated bank/banks will furnish monthly payments and receipt scrolls to the State Commission, which will ensure that the receipts and cheques appearing in the scrolls are those issued/deposited by the State Commission and reconcile each transaction with the bank/banks.

(3)

Drawl of funds from the bank:

(a)

All funds received will be paid into the State Commission's Accounts in the bank/banks and will not be withdrawn except on presentation of a cheque signed by the officers, as authorised by the State Commission.

(b)

These officers will be responsible for monitoring the transactions of receipts and payments on behalf of the State Commission.

(c)

These officers will also be responsible in ensuring that the amounts of the cheques/demand drafts deposited in the accredited banks have been credited in time in the account of the State Commission and also reconcile the receipts and payments Accounts with them.

7.

Delegation of Power.

- The State Commission will lay down a detailed procedure for sanction of various expenditure and delegation of powers among the Commission, Chairperson and Secretary of the Commission.

8.

Accounts.

(1)

The Accounts of the Commission will be maintained as per provisions of the Rajasthan Electricity Regulatory Commission (Annual statement of Accounts) Rules,

(2)

The Accounts of the Commission will be authenticated by the Chairperson, one member dealing with the finance and the Secretary of the State Commission.

9.

Audit.

(1)

The Accounts of the State Commission will be sent to the Comptroller and Auditor General of India (C&AG), or to any other person appointed by him, within three months of the closing of the financial year. The Accounts of the State Commission will be Audited by the Comptroller and Auditor General of India. Any expenditure incurred in connection with such Audit will be payable by the State Commission to the Comptroller and Auditor General of India or any other person appointed by him.

(2)

The Accounts of the Commission as certified by the Comptroller and Auditor General of India or any other person appointed by him in this behalf, together with Audit report thereon will be forwarded annually to the Government by 31st December of each year by the State Commission to enable the Government to place the Audit Report before Rajasthan State Legislative Assembly.

(3)

The Comptroller and Auditor General of India or any other person appointed by him in this connection for the Audit of the Accounts of the State Commission will have the same right and privileges and authority in connection with such Audit as the Comptroller and Auditor General of India has in connection with the Audit of Government Accounts and in particular will have the right to demand production of books, Accounts, connected vouchers and other documents and papers and to inspect any of the offices of the State Commission.

10.

Closure of Fund.

(1)

The fund will remain operational as long as the relevant provisions of the Act remain in force.

(2)

All the unspent balance under the fund or when the fund is no longer required will be remitted into the Government Accounts within three months from the date of drawal of the fund from the Treasury.

11.

Miscellaneous.

- In case of any doubt regarding interpretation of the Rules, or where express provision has not been made in the Rules

about a particular matter, the same will be referred to the Government, whose decision will be final.

I

Details of expenditure heads as per Rule 4(2)

1. Salary & Allowances:

1.1

Pay & Allowances of Chairperson & Members

1.2

Pay & Allowances of Officers and Establishment

1.3

Pay & Allowance of Staff

1.4

Honorarium

1.5

Overtime Allowance

1.6

Medical and Health Care Facilities

1.7

Bonus

Any other Establishment charges (to be specified)

2. Payments towards professional fee & other services.

3. Travel Expenses:

3.1

Domestic Travel Chairman, Members & Other Officers, Domestic Travel-staff.

3.2

Foreign Travel - Chairman, Members & Other Officers,

Foreign Travel-Staff.

4. Other Administrative Expenses:

4.1

Telephone & Fax.

4.2

Rent Rates & Taxes

4.3

News Paper/Periodicals

4.4

Advertisement and Publicity

4.5

Postages and telegram

4.6

Liveries

4.7

Water & Electricity

4.8

Any others(to be specified)

5. Stationery & Printing:

5.1

Stationary

5.2

Printing

6. Publications

7. Miscellaneous and other expenses

8. Repair & Maintenance:

8.1

Building

8.2

Machinery & Equipments

8.3

Furniture & Fixture

8.4

Vehicles

9. Petrol and Lubricants

10. Hospitality Expenses

11. Audit Fees.

12.

Legal charges.

13.

Provident Funds & Other Contribution:

13.1

Pension & Gratuity (including commuted value of pension)

13.2

Contribution to CPF

13.3

Deposit Linked Insurance Scheme

13.4

Leave Salary Contribution

13.5

Pension Contribution

13.6

Gratuity Contribution.

14.

Interest:

14.1

Interest on GPF

14.2

Interest on CPF

14.3

Any others(to be specified)

15.

Group Insurance Scheme:

15.1

EGIS-Saving Fund

15.2

EGIS-Insurance Fund

15.3

EIS-Saving Fund

15.4

EGIS-Insurance Fund

16.

Capital Expenditure:

16.1

Land & Buildings

16.2

Motor cars

16.3

Tools & Plants/Machinery & Equipment

16.4

Furniture

16.5

Computers

16.6

Air conditioners/Coolers

16.7

Any other(to be specified)

17.

Depreciation

18.

Loss on sale of assets

19.

Bad debts written off.

20.

Excess of Income over expenditure (transferred to consolidated fund of Rajasthan)

21.

Outstanding Expenses.

Form-I

Revised Estimate for the year.....and Budget Estimate for the year of the Rajasthan Electricity Regulatory Commission.

Receipts

Actual for the year

Budget Estimate for the year

Revised Estimate for the year

Budget Estimate for the year

Grants-in-aid from the State Government.

(i) Grants in aid towards, salaries.

(ii) Other Grants in aid.

Grand Total:

Form - II

Revised Estimates for the year.....and Budget Estimate for the year in respect of Rajasthan Electricity Regulatory Commission

Expenditure

Actual for the year

Budget Estimate for the year

Revised Estimate for the year

Budget Estimate for the year

1.

Salary & Allowance:

1.1 Pay & Allowance of Chairperson & Members.

1.2 Pay & Allowances of Officers and Establishment

1.3 Pay & Allowances of Staff

1.4 Honorarium

1.5 Overtime Allowance

1.6 Medical and Health Care Facilities

1.7 Bonus

1.8 Any other establishment charge (to be specified)

2.

Payments towards professional fee & other services

3.

Travel Expenses

3.1 Domestic Travel

3.2 Foreign Travel

4.

Other Administrative Expenses:

4.1. Telephone & Fax.

4.2 Rent Rates & Taxes

4.3 News Paper/Periodicals

4.4 Advertisement and Publicity

4.5 Postage and Telegram

4.6 Liveries

4.7 Water & Electricity

4.8 Training expenses

4.9 Contractual service expenses

4.10 Ombudsmen expenses

4.11 Any others (to be specified)

5.

Stationery & Printing

5.1 Stationery

5.2 Printing

6.

Publications

7.

Miscellaneous and other expenses

8.

Repairs & Maintenance:

8.1 Buildings

8.2 Machinery & Equipments

8.3 Furniture & Fixture

8.4 Vehicles

8.5

9.

Petrol and Lubricants

10.

Hospitality Expenses

11.

Audit Fees.

12.

Legal charges.

13.

Provident Fund & Other Contribution:

13.1 Pension & Gratuity (including commuted value of pension)

13.2 Contribution to CPF

13.3 Deposit Linked Insurance Scheme

13.4 Leave Salary Contribution

13.5 Pension Contribution

13.6 Gratuity Contribution

14.

Interest

14.1 Interest on GPF

14.2 Interest on CPF

14.3 Any others (to be specified)

15.

Capital Equipments:

15.1 Vehicles

15.2 Tools & Plants/Machinery &
Equipments

15.3 Furniture

15.4 Computers

15.5 Air conditioner/Cooler

15.6 Any others (to be specified)

Grand Total

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